

INTA Practice Guides Report

Country Guides

Australia

SINGLE JURISDICTION REPORT

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I. General — A. Rights Afforded by Registration

- Registration is not required to establish rights in a trademark; sufficient prior use establishes rights in a trademark; this is a "first-to-use" jurisdiction. The owner of a trademark in Australia is the first to use the mark or the first to file an application, whichever is earlier. In order to claim ownership based on prior use, the trademark in question must be "substantially identical" and used for the same goods/services or "the same kind of thing," which has been narrowly interpreted by the courts.
- Use of an unregistered mark for any goods or services is legal.
- The following legislation regarding plain packaging has been enacted in this jurisdiction: Tobacco Plain Packaging Act 2011 (Cth).

I. General — B. Time Frame for Obtaining Registration

- The approximate time from application to registration (for a regular prosecution, without opposition) is: The time from application to registration will depend on the number of issues raised and their complexity (if any) during examination; however, the earliest a trademark can proceed to registration is seven and a half months after the priority date.

I. General — C. Advantages of Registration

- The benefits of registering a trademark include the following: it provides prima facie evidence of ownership and validity; it provides regional, national, and/or local protection; it allows use of "Registered Trademark" or other suitable terms or abbreviations to demonstrate ownership of the trademark; it allows the registrant access to bring actions in particular courts; it helps to deter others from unlawfully using the trademark; it provides a defense to infringement; enforcement of an unregistered trademark is more difficult and more costly than enforcement of a registered trademark; it encourages licensees and provides the opportunity to generate royalties through licensing.

II. Pre-Filing — A. Registrable Trademarks

- The following signs that can be reproduced graphically and are capable of distinguishing the goods or services of one person or entity from another are registrable as a trademark: words; names (In general, a common Australian surname (i.e., a surname which occurs more than 750 times on the Australian electoral roll) or a commonplace name will not be considered sufficiently distinctive to qualify for registration unless evidence of use of the name is filed or the goods/services claimed are not commonplace.); devices; certain three-dimensional shapes (Often, an application to register a three-dimensional shape encounters an objection that the mark is not capable of distinguishing the applicant's goods. The likelihood of an

objection being raised depends on the shape and the goods/services claimed.);colors (A single-color mark is generally considered not capable of distinguishing, and substantial evidence of use of the mark is required to secure acceptance, but combinations of colors are generally inherently registrable.);slogans (As slogan marks are generally comprised of common English words, a distinctiveness objection can be encountered on occasion.);sounds;smells (olfactory trademarks);trade dress/get-up;holograms;motion;taste;touch.

- The special requirements for the registration of three-dimensional shapes are: An application claiming a shape as a trademark must include descriptions and representations that show each feature of the trademark sufficiently clearly to permit proper examination of the trademark. In general, representations of the shape mark should be in the form of perspective or isometric drawings that show clearly all the features of the trademark (usually top, bottom, and side views are required). The parts of the configuration claimed to constitute the trademark should be shown in solid lines, while the unclaimed parts, if any, should be shown in broken lines. The drawings, views, and/or photographs of the trademark must also be accompanied by a written description of the trademark. The description and pictorial representation of a shape trademark should together clearly define all the details which constitute the trademark.

- The special requirements for the registration of colors are: An application for a color or colors as a trademark must include a clear and concise description of the trademark as an endorsement to the application. A pictorial representation showing the color claimed and the manner in which it is to be applied to the goods or packaging should also be supplied, especially in cases where the description is complex. An example of the actual color or color combination claimed must be supplied in all cases. If the applicant chooses to define the color(s) more precisely by the use of a recognized color matching system (e.g., PANTONE color), this reference may be included in the descriptive endorsement. Increasingly, the Office prefers color identification systems as these can provide more long-lasting clarity as to the colors claimed for protection. Nevertheless, a color matching system is not essential. If no color matching system reference is provided, it will be necessary to provide an example of the color and ensure the accompanying description refers to the representation as attached to the application form.

- The special requirements for the registration of sounds are: An application for a sound as a trademark must include a graphical representation of the mark. This may be a simple verbal description of the sounds such as "CLIP CLOP MOO." Musical notation is acceptable as a graphical representation of a sound mark consisting of a musical piece. However, a lengthy piece of musical notation such as the complete score of an orchestral or piano piece is unlikely to meet registrability requirements. The name of a specific piece of music is not acceptable as a graphical representation unless additional information is supplied to identify the particular rendition claimed as a trademark. In general, the musical notation of the specific piece would be more appropriate than just its name. As well as the graphical representation, the applicant must supply a clear and concise description of the trademark which will be entered as an endorsement to the application. The applicant must supply recordings of the trademark on a medium which allows for easy replaying. Currently, the most common media are CDs, DVDs, and MP3 recordings.

- The special requirements for the registration of smells are: The application must include a graphical representation of the scent mark. This could be by way of a verbal description of the scent such as "the scent of pine." The description must include both what the scent is, and how it is to be used in respect of the goods or services

claimed. The graphical representation must be in a form that conveys information to the ordinary person allowing him/her to identify the trademark. Highly technical data will not be acceptable as a graphical representation. For example, the results of analytical techniques such as infrared spectroscopy; vacuum, fractional, and molecular distillation; nuclear magnetic resonance; vacuum fractionation; "electronic nose" analysis; and chromatographic techniques would not be acceptable. An actual sample of the scent is not required at filing but may be needed during the course of examination.

- The special requirements for the registration of trade dress are: The application must include an accurate description of the mark noting all of the elements comprising the trade dress and should, where appropriate, identify the trademark as being an aspect of packaging.
- The special requirements for the registration of holograms are: The applicant must provide clear representations that show all the features of the trademark. The application must be accompanied by a description of the trademark that likewise clearly describes all the features of the trademark. A copy of the actual trademark must also be provided.
- The special requirements for the registration of motion are: The applicant must provide clear representations that show all the features of the trademark. The application must be accompanied by a description of the trademark that likewise clearly describes all the features of the trademark. A copy of the actual trademark—as a video clip, for example—must also be provided.
- The special requirements for the registration of taste are: While "taste" arguably falls within the definition of a sign, IP Australia considers it difficult to determine how a taste or flavor could serve to distinguish an applicant's goods. It may often not be practical (or hygienic) for a customer to taste goods prior to selection and purchase. Tasting the goods after purchase does not seem to meet the requirements of denoting a trade source. It is also common for flavors to be used to mask an unpleasant taste, as, for example, cherry or strawberry flavoring for children's pain-relieving syrups and other medicines. The flavors in these cases have a functional purpose and are thus not adapted to distinguish. If an applicant was to apply for a taste trademark, the application would require the same kind of description as is expected for scent trademarks. The taste would need to be described in words that make it clear exactly what the flavor is. It would also need to be clear from the description how the taste was to be used in respect of the goods claimed.
- The special requirements for the registration of touch are: Feel or "texture" falls into the definition of sign, and it is thus possible that an applicant could be successful in an application for a texture as a trademark. The usual tests apply as they do for any other kind of trademark. The applicant needs to provide an appropriate representation and description.
- Marks registered in black and white or grayscale are construed broadly to protect the mark both as registered and in other color combinations.
- In addition to regular trademark registrations, the following types of trademarks are registrable: collective marks; certification marks; well-known marks; service marks.
- Retail services are registrable provided that the nature of the retail services is clearly identified.
- The following are not registrable as trademarks: marks contrary to moral standards or public order; generic terms (These are registrable in theory, provided the applicant can submit sufficient evidence of exclusive use of the mark in Australia prior to the filing date of the application to establish that the mark did in fact distinguish the applicant's goods or services at the time of filing of the application.); names, flags, or

symbols of states, nations, regions, or international organizations; non-distinctive trademarks, absent a showing of acquired distinctiveness (secondary meaning); marks that function principally as surnames (These are registrable provided evidence of use is filed demonstrating that the mark is distinctive or capable of becoming distinctive.); marks that function principally as geographic location names (but not geographical indications or appellations of origin) (These are registrable provided evidence of use is filed demonstrating that the mark is distinctive or capable of becoming distinctive.).

- Geographical indications (GIs) are protected in this jurisdiction.
- GIs are protected by way of: special laws for the protection of geographical indications or appellations of origin; trademark laws, in the form of collective marks or certification marks; laws against unfair competition; consumer protection laws; specific laws or decrees that recognize individual geographical indications.
- The following products or categories are subject to GI protection in this jurisdiction: Wine under the Wine Australia Act 2013 (Cth), and the use of place names or geographical references on certain food goods and beverages, may be protected by certification trademarks.

II. Pre-Filing — B. Searching

- While conducting a private pre-filing search is not mandatory, it is recommended in that it can: save the applicant the time, effort, and cost entailed in developing, adopting, and applying to register a trademark in which someone else has prior rights; disclose additional potentially conflicting trademarks, e.g., prior unregistered rights such as those gained at common law.
- The national office is accessible online at the following URL: <https://www.ipaustralia.gov.au>
- The official register can be searched online at the following URL: <https://search.ipaustralia.gov.au/trademarks/search/quick>

II. Pre-Filing — C. Use

- An applicant benefits from pre-filing use of a trademark. The owner of a trademark is the first to use a mark or the first to apply for registration, in Australia, whichever is earlier. Furthermore, common law rights are acquired through use of a mark.
- The benefits of pre-filing use are: Use may demonstrate acquired distinctiveness (secondary meaning) and help to overcome an objection to an application to register the trademark on the ground of non-distinctiveness. A mark that has been used before filing may be registrable in the face of an earlier-filed application for an unused mark, and may even prevent the registration of such an unused mark.
- When a mark is not registered, use of that mark may provide the following benefits: Courts may protect unregistered trademarks in some exceptional cases. The owner of an unregistered mark that has acquired a reputation in that mark may take action against the unauthorized use of a similar mark under Schedule 2 of the Competition and Consumer Act 2010 (Cth) and/or for passing off. Special protection against infringement may be available for a famous and/or well-known mark that is not registered. The owner of an unregistered mark that has acquired a reputation in Australia as a result of use of that mark overseas may take action against the unauthorized use of a similar mark under Schedule 2 of the Competition and Consumer Act 2010 (Cth) and/or for passing off. Protection against infringement may be available for trademarks with substantial and long-standing use that are not registered. A defense to infringement of a registered trademark is available if the

owner of the unregistered mark can establish that he/she would be entitled to registration in his/her own name if he/she were to apply for registration of his/her mark (e.g., on the basis of honest concurrent use or prior continuous use).

- Famous and/or well-known marks are protected via the following mechanism(s): a determination by the court resulting from an action for infringement (A registered trademark that has acquired a reputation in Australia is infringed by the unauthorized use of a substantially identical or deceptively similar mark for unrelated goods/services to the registered goods.); a determination by the court (other than one resulting from an action for infringement) (A well-known trademark is also protected under the tort of passing off and the Australian Competition and Consumer Act 2010 (in particular Schedule 2 the Australian Consumer Law), which prohibits a person from engaging in conduct that is misleading or deceptive and unconscionable conduct.).

II. Pre-Filing — D. International Treaties

- This jurisdiction is a member of the following international treaties relating to intellectual property: Paris Convention; Trademark Law Treaty; Singapore Treaty; Madrid Protocol; Nice Agreement.

III. Filing — A. Requirements

- If the applicant is not domiciled in this jurisdiction, a local address for service must be provided.
- Joint applicants are permitted in this jurisdiction.
- Either actual use or intent to use is required for application. A trademark application can be opposed on the basis that the applicant had no intention to use the applied-for mark at the time of filing the application.
- The following information is required to COMPLETE an application: name and address of applicant; state or country of incorporation; description of trademark (for non-traditional marks); representation of trademark (a depiction of the mark an applicant seeks to register) (for logo marks or some non-traditional marks); list of goods/services; official filing fee; priority claim, where priority of an earlier application is claimed.
- While ALL of the items noted in the list immediately above are required to COMPLETE an application, ONLY THE FOLLOWING ITEMS from that list are required in order to SECURE A FILING DATE: name and address of applicant; representation of trademark (a depiction of the mark an applicant seeks to register) (for logos and some non-traditional marks); list of goods/services; official filing fee.
- The list of goods and services in this jurisdiction may specify: the relevant class heading (However, there is case law to the effect that a class heading does not include all goods/services in a class (e.g., computer software has been held not to be covered by the Class 9 heading). Any specific goods/services of interest should be listed in an application if not clearly encompassed by the class heading.); a list of names commonly used in the trade for the specific goods or services of interest; the relevant entire (long) alphabetical class listing (It is likely that IP Australia would accept such a specification, but the application could be opposed by a third party on the basis that the applicant has no intention to use the mark in respect of all items claimed. Claiming the entire alphabetic class listing is not recommended.).
- The relevant entire (long) alphabetical class listing is appropriate to use in applications for: goods and/or services.

- The following number of copies of the trademark must be submitted: A single representation of a trademark is sufficient for filing purposes. In order to meet the minimum filing requirements, the representation of the trademark must clearly identify the trademark and all its features. For non-traditional signs, a description of the mark should be provided.
- Although not a filing requirement, a power of attorney might need to be submitted during prosecution in the following circumstances: other: to accompany a signed letter of consent or declaration if signed under power of attorney.
- In this jurisdiction, the following types of registration are available: regional; national; international.
- This jurisdiction is a party to the Madrid Protocol but not the Madrid Agreement and may be designated in international applications.
- This jurisdiction is not a member of the European Union; a European Union Trade Mark registration is not effective in this jurisdiction.
- No (other) multinational regional registrations are available in this jurisdiction.
- An international application is subject to the same registrability requirements and examination procedure as a locally filed application. (See the entry for the Madrid System.)
- Applications can be filed online at the following URL: <https://www.ipaustralia.gov.au/> provided that a local address for service is provided.
- The official file cannot be accessed online.
- Applications are officially searched as to prior trademarks.

III. Filing — B. Priority

- If an applicant's home country is a signatory to the Paris Convention, the filing date of its home application can be claimed as the filing date in this jurisdiction, provided that its home application was filed within the fixed period of six months preceding the application in this jurisdiction. If an applicant's home country is a member of the World Trade Organization, it should be possible to claim the home filing date. (Consult a local trademark attorney.) An International Registration can be based on a national application or registration in this jurisdiction.

III. Filing — C. Classification

- This jurisdiction uses the Nice Classification System.
- If a trademark is or will be used in more than one class of goods and/or services, one application can cover multiple classes of goods or multiple classes of services, but separate applications are also permitted.
- For a multi-class application, the applicant must pay class fees on a per-class basis.

III. Filing — D. Representation

- An application to register a trademark may be filed directly in this jurisdiction by: the applicant, even if not a citizen of or domiciled in the jurisdiction (provided that the applicant has an address for service in the jurisdiction (e.g., the address of a distributor)); a trademark representative/attorney/agent, even if not a citizen of or domiciled in the jurisdiction (provided that the representative/agent/attorney has an address for service in the jurisdiction); a trademark representative/attorney/agent, but only if a citizen of or domiciled in the jurisdiction.

IV. Application — A. Publication

- The filing particulars of an application are made available to the public.
- The filing particulars are made available to the public:online. Hard copies of the Australian Official Journal of Trade Marks are no longer printed and are only provided on CD or online.
- The following application details are made available to the public:mark;name of applicant;address of applicant;state or country of incorporation of applicant;application number;application date;goods/services;priority claim information;representation of trademark.other: any endorsements or disclaimers entered against the mark.

IV. Application — B. Examination

- Applications are examined in respect of:formalities: i.e., for compliance with the filing requirements;classification: i.e., to ensure that the goods or services fall within the class(es) listed in the application;clarity: i.e., that descriptions are clear and understandable;descriptiveness: i.e., to check whether a trademark functions solely to provide information about the goods and services affiliated with the trademark;distinctiveness: i.e., to ensure that trademarks are capable of being represented graphically and of distinguishing the goods or services of one individual or organization from those of other individuals or organizations;deceptiveness: i.e., to check whether a trademark is of such a nature as to deceive the public (for instance, as to the nature, quality, or geographic origin of the goods or services);conflict with prior registration, prior-filed application, or earlier unregistered rights resulting from an official search.
- If the local trademark authority issues a preliminary refusal to register a mark based on an earlier registration owned by another:The existence of a valid coexistence agreement between the applicant and the cited registrant may be accepted as evidence permitting registration of the application; its acceptance is at the discretion of the trademark authority. The acceptance of a coexistence agreement by IP Australia will depend on the terms of the agreement. An agreement will not be acceptable if it there are conditions or limitations on the terms of use or registration of the applicant's trademark for the goods/services which are the subject of the application. Letters of consent are normally filed in order to address a citation objection based on a prior trademark.
- This jurisdiction does not have disclaimer practice (i.e., a practice whereby the applicant must disclaim any exclusive right to an element of a trademark that is not distinctive). IP Australia cannot require an applicant to enter a disclaimer, but an applicant may voluntarily enter a disclaimer. Usually, this would be the result of an opposition or other negotiation with a third party. Voluntarily entering a disclaimer will not affect the inherent registrability of the mark.
- The order of the application process is as follows:examination, publication, registration.

IV. Application — C. Prosecution

- Accelerated examination may be requested. A statutory declaration must be provided outlining the reasons expedited examination is required. If accelerated examination is requested, the application will be examined within approximately four weeks of the request.
- A reason for acceleration is required. The following are considered acceptable reasons: There is a risk of infringement, the applicant has already invested in the manufacture and/or advertisement of goods/services bearing the mark, or other good reason.

- A fee for acceleration is not required.
- The following rights are established by a pending application: the filing date of the application establishes a home filing date for purposes of priority; the filing date of the application establishes a constructive date of first use for an intent-to-use application; the pending application can be cited in official examination against a subsequent (later-filed) conflicting application; the pending application can be used in a third-party opposition proceeding against a subsequent (later-filed) conflicting application; the pending application establishes prima facie proof of ownership of a trademark (although an application may be opposed on the basis of a prior use of the mark by another trader).

IV. Application — D. Opposition

- Opposition is available.
- Opposition is conducted pre-grant.
- The following can be grounds for opposition: proprietary rights, such as an earlier conflicting registration; the mark is descriptive, i.e., it consists of a sign or indication that may serve in trade to designate the kind, quality, quantity, intended purpose, or value of goods or of rendering of services or other characteristics of goods or services; the mark is not distinctive; the mark is misleading, deceptive, or disparaging; the mark is functional; breach of copyright; rights under Article 6bis of the Paris Convention (notorious or well-known mark); rights under Article 6ter of the Paris Convention (protection of armorial bearings, flags, and other State emblems); the mark is generic, i.e., the mark consists exclusively of signs or indications that have become customary in the current language or in the bona fide and established practices of the trade; the mark consists of a geographical indication; the mark is against public policy or principles of morality; other: use of the mark would be contrary to law; the trademark application was made in bad faith; the application, or a document filed in support of the application, was amended contrary to the Trade Marks Act 1995 (Cth); the Registrar accepted the application for registration on the basis of evidence or representations that were false in material particulars; the trademark applicant does not intend to use or authorize the use of the trademark, or assign it to a body corporate for use by the body corporate in Australia; the trademark is not capable of distinguishing goods or services certified by the applicant or an approved certifier from goods or services not so certified (for certification trademarks); the trademark which forms the basis of a defensive trademark is not a registered trademark in the name of the applicant, or in the case of a registered trademark, if it is not likely that the use of the trademark in relation to the goods or services in respect of which its registration as a defensive trademark is sought will be taken to indicate that there is a connection between those goods or services and the registered owner (for defensive trademarks); any ground on which the application could have been refused.
- An application is published for opposition purposes after formal examination of the application.
- The opposition period begins on the following date: the date upon which the application is advertised for opposition purposes.
- The opposition period ends on the following date: The opposition period expires two months from the date the application is advertised for opposition purposes.
- Anyone may initiate an opposition.
- Oppositions can be filed online using eServices at <https://www.ipaustralia.gov.au/>

IV. Application — E. Proof of Use

- Proof of use is not required prior to the issuance of a registration or the issuance of a notice of allowance/acceptance.

V. Assignment, Licensing, and Other Changes to Trademark Records — A. Assignment

- An application can be assigned.
- A registration can be assigned.
- An assignment of an application must be for the entire territory covered by the application.
- An assignment of a registration must be for the entire territory covered by the registration.
- An assignment of an application can be for some or all of the goods or services listed in the application.
- An assignment of a registration can be for some or all of the goods or services listed in the registration.
- Goodwill must be included in an assignment of an application. An assignment must include the goodwill in the mark itself, but need not include the goodwill of the business (the physical assets). Assignments with the goodwill of the business may give rise to difficulties in some circumstances as stamp duty may be payable.
- Goodwill need not be included in an assignment of a registration.
- An assignment document for an application requires: name of assignor; address of assignor; name of assignee; address of assignee; details of the trademark being assigned; goods and services being assigned; territory being assigned; effective date of the assignment; signature by assignor; consideration (either actual or nominal); other: the position of the signatory of the assignor and assignee.
- An assignment document for a registration requires: name of assignor; address of assignor; name of assignee; address of assignee; details of the trademark being assigned; goods and services being assigned; territory being assigned; effective date of the assignment; signature by assignor (including title of the signatory); signature by assignee (necessary only if the assignee executes the assignment document, including title of the signatory); consideration (either actual or nominal); other: the position of the signatory of the assignor and assignee.
- Legal verification of a written assignment document of an application is not required.
- Legal verification of a written assignment document of a registration is not required.
- An assignment of an application need not be recorded, but if it is not recorded the assignment may not be effective against a subsequently dated but recorded assignment.
- An assignment of a registration need not be recorded, but if it is not recorded the assignment may not be effective against a subsequently dated but recorded assignment.

V. Assignment, Licensing, and Other Changes to Trademark Records — B. Licensing

- Use of a mark that is the subject of an application can be licensed.
- Use of a registered mark can be licensed.
- In this jurisdiction, registered trademark users (as opposed to licensees) cannot be recorded. However, a joint application can be made by a trademark owner and user to record the trademark user's claim to a right or interest in the trademark.
- A license of an application can be made for a portion of the territory covered by the application.
- A license of a registration can be made for a portion of the territory covered by the

registration.

- A license of an application can be for some or all of the goods or services listed in the application.
- A license of a registration can be for some or all of the goods or services listed in the registration.
- A license of an application can be exclusive (only one licensee, with the owner excluded). A license of an application can be sole (only one licensee and the owner). A license of an application can be non-exclusive (multiple licensees and the owner).
- A license of a registration can be exclusive (only one licensee, with the owner excluded). A license of a registration can be sole (only one licensee and the owner). A license of a registration can be non-exclusive (multiple licensees and the owner).
- The following requirements relate to the use by a related company of a mark that is the subject of an application: For a trademark owner to rely on the use of a trademark by a related entity as “authorized use” (e.g., to defeat a non-use removal application), the trademark owner must demonstrate: (i) that it exercises financial control over the related entity; or (ii) that it exercises quality control over the related entity; or (iii) that the two entities are operated with a “unity of purpose” (e.g., common directors, common registered address, and common principal place of business).
- The following requirements relate to the use by a related company of a registered mark: For a trademark owner to rely on the use of a trademark by a related entity as “authorized use” (e.g., to defeat a non-use removal application), the trademark owner must demonstrate: (i) that it exercises financial control over the related entity; or (ii) that it exercises quality control over the related entity; or (iii) that the two entities are operated with a “unity of purpose” (e.g., common directors, common registered address, and common principal place of business).
- A license of an application can be made with a time limitation.
- A license of a registration can be made with or without a time limitation.
- A license document for an application requires: name of licensor; address of licensor; name of licensee; address of licensee; details of the trademark to be licensed; goods and services being licensed; commencement date of the license; term of the license; territory of the license; quality control provisions; signature by licensor; signature by licensee; express permission to sublicense, if appropriate.
- A license document for a registration requires: name of licensor; address of licensor; name of licensee; address of licensee; details of the trademark to be licensed; goods and services being licensed; commencement date of the license; term of the license; if the license has no limitation of time, a statement so indicating; territory of the license; quality control provisions; simple signature by licensor (see below for execution requirements); simple signature by licensee (see below for execution requirements).
- Legal verification of a written agreement to license an application is not required.
- A license of an application need not be recorded to be effective. Technically, the recordal of a license is not possible. However, a licensee can record a claim to a right or interest in a trademark, which is the subject of a registration or application, arising from the license, by making a joint application with the owner of the mark.
- A license of a registration need not be recorded, but recordation could help in enforcement, to demonstrate use of the mark.
- The license for a renewed registration need not be re-recorded.
- Legal verification of a written agreement to license a registration is not required.

V. Assignment, Licensing, and Other Changes to Trademark Records — C. Other Changes to Trademark Records

- The requirements for the recordal of name changes, mergers, and other important corporate updates on trademark records are as follows: deed of assignment, without further formalities; certificate of proof of change of name, without further formalities; certificate of merger, without further formalities.
- The requirements regarding the recordal of updated addresses on trademark records are as follows: A request to amend address details recorded on the Register should be made in writing. Supporting documentation to verify the address change is not required.
- The requirements for recording liens against trademark records, such as security interests, are as follows: A claimant may apply to record a claim to a right or interest in a trademark if documentary proof (e.g., copy of security document, mortgage, or other). If the claimant does not wish to provide documentary proof, a joint application signed by both parties is sufficient to record the claim to a right or interest in a trademark. Such an interest should also be recorded on the Personal Property Securities Register in order to be perfected.

VII. Post-Registration — A. Use Requirements

- Attack on the ground of non-use is available.
- To avoid being attacked on the ground of non-use, a trademark must be used within the following period of time: within the three-year period ending one month before an application for removal on the grounds of non-use is filed. However, an Australian trademark registration is not vulnerable to removal for non-use for five years from the filing date (if filed before February 24, 2019) or for three years from the date that the particulars of the trademark are entered onto the Register (if filed on or after February 24, 2019).
- To satisfy the use requirement, the amount of use can be minimal. A single sale during the relevant three-year period can be sufficient to defeat a non-use application but must be genuine commercial use.
- Use of the trademark must occur in this jurisdiction. However, the Registrar has a fairly broad discretion not to remove a registered mark even where use of the mark is not established. In the case of a well-known mark not used in Australia but with "spill-over" reputation in Australia, the Registrar may exercise that discretion. Other factors that can be taken into account by the Registrar for the purposes of exercising the discretion not to remove the trademark include use of the mark on similar or closely related goods/services, and circumstances which prevented the trademark owner from using the trademark.
- The consequences of a trademark's not being used are as follows: removal from the Register in respect of the goods and/or services which are the subject of the removal application.
- Periodic statements of use or other mandatory filings by the trademark owner setting forth use of the trademark are not required.
- An action for non-use of a trademark can be brought by other: any third party.
- Non-use can be excused under the following circumstances: import restrictions; other government policies.
- Resumption of use of a trademark prior to the filing of an action to revoke or cancel that trademark may cure non-use if preparation for the resumption of use began before the registrant was aware that an action had been or was about to be filed.
- Use of a registered trademark in a modified form would not affect the enforceability of a registration and is allowed if the difference is slight and provided that the modification does not materially alter the distinctive character of the trademark. Consult a local trademark attorney.

- Amendment of a registration to conform to a modified form of the trademark is possible. Consult a local trademark attorney. Amendment is only permitted provided that the amendment does not substantially affect the identity of the trademark as initially filed.

VII. Post-Registration — B. Cancellation

- Cancellation is available.
- The following can be grounds for cancellation: proprietary rights, such as an earlier conflicting registration; the mark is descriptive, i.e., it consists of a sign or indication that may serve in trade to designate the kind, quality, quantity, intended purpose, or value of goods or of rendering of services, or other characteristics of goods or services; the mark is not distinctive; the mark is misleading, deceptive, or disparaging; the mark is functional; breach of copyright; rights under Article 6bis of the Paris Convention (notorious or well-known mark); rights under Article 6ter of the Paris Convention (protection of armorial bearings, flags, and other State emblems); the mark is generic, i.e., the mark consists exclusively of signs or indications that have become customary in the current language or in the bona fide and established practices of the trade; the mark consists of a geographical indication; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention (The mark is contrary to law (including breach of registered design rights).); the application for or registration of the mark was made in bad faith.
- There is no deadline for bringing a cancellation action; a cancellation action can be brought at any time.
- The following parties may bring a cancellation action: other: An application for cancellation may be made by an "aggrieved person" (or by the Registrar if it is in the public interest).
- Cancellation actions cannot be filed online. Cancellation actions cannot be filed with the Australian Trade Marks Office but must be commenced by way of court proceedings initiated in the Federal Court of Australia.

VII. Post-Registration — C. Renewal

- The following documentation is required for renewal: none.
- The first renewal date of a registration is: 10 years from the application filing date.
- Subsequent renewals last for the following period of time: 10 years from the renewal date of the registration.
- The renewal pre-payment period is: no more than the following number of months before the renewal date: 12 months.
- There is a grace period for renewing registrations once the renewal date has expired.
- The grace period after the renewal date has expired is: 6 months.
- The penalty for late renewal is: a fine. A late fee is payable for each month or part thereof after the renewal period.
- Renewal can be effected online at the following URL: <https://www.ipaustralia.gov.au/>
- At the completion of renewal, a new registration number is not issued.

VIII. Customs Recordation — A. Customs Recordation

- Trademarks that are registered in this jurisdiction can be recorded with the customs authority, the name of which is: Australian Border Force.

- Recordation with the customs authority cannot be accomplished online. The following process must be followed: An application form (signed by the trademark owner) and supporting documentation must be prepared and filed with the Australian Border Force.

IX. Domain Names — A. Domain Names

- A domain name may be protected as a trademark only if the domain name is not merely a Web address but is used or intended to be used in connection with goods or services. Domain names also may be registered as trademarks if they meet the usual registrability requirements.
- The following approved registrars can register a domain name in this jurisdiction: A list of auDA-accredited registrars can be found at: <https://www.auda.org.au/accredited-registrars>
- Availability of domain names in this jurisdiction can be searched through the following website(s): There are a number of free WHOIS database services that may be searched, such as: <https://identitydigital.au/>
- The Country Code Top-Level Domain (ccTLD) for this jurisdiction is: .au
- To obtain a domain name under the ccTLD in this jurisdiction, the following is required: local business activity; other: an Australian company number or business number; an Australian trademark registration or application.
- Domain name registrations can be assigned.
- Domain name registrations can be licensed.
- A domain name registration may be contested in this jurisdiction through the following mechanisms: a Uniform Domain-Name Dispute-Resolution Policy (UDRP) proceeding, filed through the following locally approved domain-name dispute resolution service provider(s) in the jurisdiction: auDA; other: by filing a court action for trademark infringement and/or breach of the Australian Consumer Law.
- If a registration lapses as a result of failure to renew, it can be revived or restored in the following way: There is usually a grace period for late renewal. The length of the grace period will depend on the Registrar.
- The application to register a domain name as a trademark will be examined for conflicts with prior trademarks.
- An earlier-filed domain name registration can create rights effective against a later-filed trademark registration application filed by another because an examiner will require proof that the applicant is the holder of the domain name. If the trademark applicant and domain name holder are not the same, the examiner will object to the trademark application on the basis that use of the trademark is contrary to law in that it is likely to mislead or deceive.
- In general, the courts apply the same principles to domain name disputes as are applied to trademark disputes.

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